NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

ORDER SHEET OF THE HEARING ON 13th JUNE, 2025

CP(CAA)/2/GB/2024
(CA(CAA)/1/GB/2023)

Present: 1. Hon'ble Member (Judicial), Shri Rammurti Kushawaha
2. Hon'ble Member (Technical), Shri Yogendra Kumar Singh

In the Matter of	DNB Finance and Investment Consultants Pvt. Ltd. 2. Jyoti Holdings pvt. Ltd. 3. Karishma Suppliers Pvt. Ltd. (Transferor Companies) And CR Vanijya Pvt. Ltd. (Transferee Company)
Under Section	U/s 230-232 of Companies Act, 2013.

Appearances (via video conferencing/physically)

For Petitioner (s) :Mr. N. Gurumurthy, CA

ORDER

Order pronounced in open court *vide* separate sheets.

Sd/-
Yogendra Kumar Singh
Member (Technical)

Sd/-
Rammurti Kushawaha
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.P (CAA) No. 2 / GB / 2024
Connected With
CA (CAA) No. 1/ GB / 2023

A Petition under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for sanction of Scheme of Amalgamation;

In the Matter of:

DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED (CIN: U67120AS1997PTC005098), a company incorporated under Companies Act, 1956 and having its Registered Office at Centre Point, 3rd Floor, Opposite Bora Service, G.S. Road, Guwahati-781007 in the State of Assam.

……Transferor Company No. 1 / Petitioner No. 1

-And-

In the Matter of:

JYOTI HOLDINGS PRIVATE LIMITED (CIN:U70109AS1997PTC005099), a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at Centre Point, 3rd Floor, Opposite Bora Service, G.S. Road, Guwahati- 781007 in the State of Assam.

……Transferor Company No. 2 / Petitioner No. 2

-And-

In the Matter of:

KARISHMA SUPPLIERS PRIVATE LIMITED (CIN:U51109AS2007PTC018183), a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office 2C, 2nd Floor, Itag Plaza, Tarun Nagar, G.S. Road, Kamrup, Guwahati- 781005 in the State of Assam.

……Transferor Company No. 3 / Petitioner No. 3

-And-

C.P (CAA) No. 2 / GB / 2024
Connected With
CA (CAA) No. 1/ GB / 2023

In the Matter of:

CR VANIJYA PRIVATE LIMITED (CIN:U51909AS2007PTC021479), a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at Centre Point, 3rd Floor, Opposite Bora Service, G.S. Road, Guwahati- 781007 in the State of Assam.

……Transferee Company / Petitioner No 4

-And-

In the matter of:

1. DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED
2. JYOTI HOLDINGSPRIVATE LIMITED
3. KARISHMA SUPPLIERS PRIVATE LIMITED
4. CR VANIJYA PRIVATE LIMITED

…… PETITIONER COMPANIES -

Coram:

Shri Rammurti Kushawaha : Member (Judicial)
Shri Yogendra Kumar Singh : Member (Technical)

Appearances (through video conferencing):

For Petitioners : : Mr. N. Gurumurthy, FCA
: Ms. Aisha Amin (Adv.)

Order pronounced on: 13.06.2025

ORDER

1. The instant Joint Petition has been filed under Section 230(6) of the Companies Act, 2013 ("**Act**") for sanction of the Scheme of Amalgamation of **DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED**, **JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED** (all

"Transferor Companies") with **CR VANIJYA PRIVATE LIMITED** ("Transferee Company") from the Appointed Date, being **1st April, 2022** in the manner and on the terms and conditions stated in the said Scheme of Amalgamation ("**Scheme**"). A copy of the said Scheme is annexed to the Company Petition and marked as "***Annexure-A".***

2. The registered offices of the Petitioner Companies are situated in the State of Assam, within the jurisdiction of this Bench.

3. The Petition has come up for final submissions and the submissions made by the Authorized Representative of the Petitioner Companies are as follows:

3.1 That the Petitioner Transferee Company is a NBFC Company and is holding a valid Certificate of Registration issued by the said Bank.

3.2 That the Appointed Date as per the Scheme is **1st April, 2022**.

3.3 That the Valuation Report dated 17.01.2023 recommending the Swap Ratio, has been prepared by CA MUKESH BANKA, IBBI Registered Valuer. A copy of the said Report is annexed to the Company Petition marked as "***Annexure – N***".

3.4 That the Board of Directors of the Petitioner Companies have at their respective meeting held on 17th January, 2023 have passed resolution adopting the proposed Scheme of Amalgamation. A copy of the Board Resolution is annexed to the Company Petition marked as "***Annexure – O***".

3.5 That the statutory auditor of the Petitioner Companies have by their certificate dated 18th January, 2023 confirmed that the Accounting Treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standards as prescribed under Section 133 of the Companies Act, 2013 and Rules made there under. A copy of the Certificate issued by Statutory Auditor of the Petitioner Companies are annexed to the Company Petition marked as "***Annexure–P".***

3.6 That, the list of equity Shareholders of the Petitioner Companies as on 31st December, 2022 duly certified by the statutory auditors of the Company are all collectively annexed to the Company Petition marked as "***Annexure – J".***

3.7 That, the list of Preference Shareholders of the Petitioner No. 1 and Petitioner No. 2 as on 31st December, 2022 duly certified by the Statutory Auditor of the Company are all collectively annexed to the Company Petition marked as "***Annexure – K".***

3.8 That, there are NIL Secured Creditors of the Petitioner Companies as on 31st December, 2022 which is duly certified by the Statutory Auditors of the Company, are all collectively annexed to the Company Petition marked as "***Annexure – L".***

3.9 That, there are NIL Unsecured Creditors in respect of Petitioner No. 1 and Petitioner No. 2 as on 31st December, 2022 duly certified by the Statutory Auditors of the Company, are all collectively annexed to the Company Petition marked as "***Annexure – L".***

3.10 That, the list of Unsecured Creditors in respect of Petitioner No 3 and Petitioner No 4 31st December, 2022 duly certified by the statutory auditors of the Company are all collectively annexed to the Company Petition marked as "***Annexure – L".***

3.11 It is submitted by Ld. Authorized Representative appearing for the Petitioner(s) that, the Petitioner(s) have the following classes of shareholders and creditors:-

PARTICULARS	**AS ON 31st DECEMBER,2022**			
	EQUITY SHARE HOLDERS	**PREFERENCE SHARE HOLDERS**	**SECURED CREDITORS**	**UNSECURED CREDITORS**
TRANSFEROR COMPANY NO. 1 / PETITIONER NO. 1	5	3	NIL	NIL
TRANSFEROR COMPANY NO. 2 / PETITIONER NO. 2	8	4	NIL	NIL
TRANSFEROR COMPANY NO. 3 / PETITIONER NO. 3	5	NIL	NIL	2

TRANSFEREE COMPANY / PETITIONER NO. 4	11	NIL	NIL	4

3.12 That, by the order dated 26th October, 2023, in Company Application No. C.A (CAA) NO. 1/GB/2023, this Tribunal made the following directions with regard to meetings of shareholders and creditors under Section 230(1) of the Act:-

"We have pursued the documents annexed to the Application and have heard the submissions made on behalf of the Applicants and pass the following orders:

a. In view of the facts mentioned above, convening and holding of meetings of Equity Shareholders of the Applicant Companies are hereby dispensed with;

b. Meeting of Preference Shareholders of the Applicant No. 1 for considering the Scheme are dispensed with;

c. Meeting of Preference Shareholders of the Applicant No. 2 for considering the Scheme are dispensed with;

d. Meeting of Unsecured Creditors of the Applicant No. 3 for considering the Scheme are dispensed with in view of consent by 93.15% in value of Unsecured Creditors of Applicant No.3 having respectively given their consent to the Scheme by way of affidavits;

e. No requirement of meeting of Secured Creditors of the Applicant Companies on account of there being none as is duly verified by Auditor's Certificate. No requirement of meeting of Unsecured Creditors of Applicant No. 1, Applicant No. 2. No requirement of meeting of Unsecured Creditors of Applicant No. 4 as all Unsecured Creditors have been paid off prior to the filing of Company Application as duly verified by Auditors Certificate."

3.13 That there are no proceedings are pending under Sections 210 to 227 of the Companies Act, 2013 against the Petitioner(s).

4. The circumstances which justify and/or have necessitated the Scheme and the benefits of the same are, inter alia, as follows**:-**

a) The TRANSFEREE COMPANY is a Non-Banking Finance Company duly Registered with Reserve Bank of India and is engaged in Investing and Financing activities. The Transferor Companies apart from investing in properties have also made investment in marketable securities. Thus, the business of the Transferor Companies and the Transferee Company can be combined/adjusted and carried forward conveniently with combined strength;

b) The Transferee Company and Transferor Companies are all closely held family-owned companies. The Transferor Companies and the Transferee Company are inter-se promoter between themselves. Thus, the amalgamation is proposed between the companies involved in the Scheme.

c) The amalgamation will scale down the number of Companies in group and will bring into existence one big company.

d) The amalgamation will enable the Transferee Company to consolidate its line of business by restructuring and re-organizing its business activities and Capital Structure;

e) The amalgamation will enable the amalgamated company to broad base their business activities under the roof of the Transferee Company;

f) The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration in better and more productive utilization of various resources;

g) The business of the Transferor Companies can be conveniently and advantageously combined together and in general with the business of the Transferee Company concerned and will be carried on more economically and profitably under the said Scheme;

h) The said Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the company concerned. The said scheme will also enable the undertakings and business of the said applicant company to

obtain greater facilities possessed and enjoyed by one large company compared with a number of small Company for raising capital, securing and conducting trade on favorable terms and other benefits;

i) The said scheme will contribute in furthering and fulfilling the objects of the Company concerned and, in the growth, and development of these businesses;

j) The said scheme will strengthen and consolidate the position of the amalgamated company and will enable the amalgamated company to increase its profitability;

k) The said scheme will enable the undertakings concerned to pool their resources and to expand their activities;

l) The said scheme will enable the Companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

m) The said scheme will have beneficial results for the Companies concerned, their shareholders, employees and all concerned.

5. Consequently, the Petitioner(s) presented the instant petition for sanction of the Scheme of Amalgamation. By an order dated 29th April, 2024, the instant petition was admitted by this Tribunal and fixed for hearing on 1st July, 2024 upon issuance of notices to the Statutory/ Sectorial Authorities and advertisement of date of hearing. In compliance with the said order dated 29th April, 2024, the Petitioner(s) have duly served such notices on the Regulatory Authorities as below :

REGULATORY AUTHORITIES		ANNEXURE	DATE OF SERVICE	PAGE NO
THROUGH SPECIAL MESSENGER (HAND DELIVERY)				
Income Tax Officer – Ward 1 (4)	PETITIONER NO 4	C	07-05-2024	21
Income Tax Officer – Ward 1 (4)	PETITIONER NO 3	C	07-05-2024	22
Income Tax Officer – Ward 2 (1)	PETITIONER NO 2	C	10-05-2024	23
Income Tax Officer – Ward 1 (1)	PETITIONER NO 1	C	10-05-2024	24

Regional Director, Eastern Region	JOINTLY BY THE PETITIONERS	D	13-05-2025	25
Registrar of Companies, West Bengal	JOINTLY BY THE PETITIONERS	E	13-05-2025	26
Upon Reserve Bank of India	JOINTLY BY THE PETITIONERS	F	03-05-2025	27
Upon Official Liquidator	JOINTLY BY THE PETITIONERS	G	13-05-2025	28
Upon Competition Commission of India	JOINTLY BY THE PETITIONERS	H	02-05-2024	29

PAPER PUBLICATION OF NOTICE				
The Assam Tribune – In English	JOINTLY BY THE PETITIONERS	B1	20-05-2024	19
Amar Asom – In Assamese Translation	JOINTLY BY THE PETITIONERS	B1	20-05-2024	20

An affidavit duly affirmed on 03-06-2024 duly annexing the acknowledgements have also been filed with the Registry. A Copy of the order dated 29th April, 2024 passed by this Tribunal is annexed marked – **ANNEXURE B** at Page No 08 to 18 of the affidavit of service.

6. All statutory formalities requisite for obtaining sanction of the Scheme have been duly complied with by the Petitioners. The Scheme has been made bona fide and is in the interest of all concerned.

7. Pursuant to the said advertisements and notices, the Registrar of Companies, NER ("RoC") and the Regional Director, NER, Ministry of Corporate Affairs, Guwahati ("RD"), the Official Liquidator, Gauhati High Court (OL), have filed their representations before this Tribunal.

8. The Official Liquidator has filed his report dated 03-06-2024 and concluded as under:-

Para 20

"This Office has prepared the above factual report/ representation based on the Scheme of Amalgamation / Arrangement and Annexures thereto as provided. In the light of the above and in terms of the Provisions of Section 230(5) of the Companies Act, 2013, this office has no adverse observations, to the extent of proposed Scheme of Arrangement/ Amalgamation within the relevant provisions of the Companies Act, 2013".

9. The RD has filed his reply affidavit dated 28th October, 2024 ("RD affidavit") which has been dealt with by the Petitioner(s) by their Reply Affidavit filed on 10th December, 2024 ("Reply"). The observations of the RD and responses of the Petitioner(s) are summarized as under:**-**

1. That the averments made in Paragraph 1 are matter of records and hence the Deponent has no reply to offer.
2. That the averments made in Paragraph 2 (a) are matter of records and hence the Deponent has no reply to offer.
3. That the averments made in Paragraph 2 (b) are matter of records and hence the Deponent has no reply to offer.
4. That the averments made in Paragraph 2 (c) are matter of records and hence the Deponent has no reply to offer.
5. That the averments made in Paragraph 2 (d) are matter of records and hence the Deponent has no reply to offer.
6. That the averments made in Paragraph 2 (e) are matter of records and hence the Deponent has no reply to offer.
7. That the averments made in Paragraph 2 (f) are matter of records and hence the Deponent has no reply to offer.
8. That the averments made in Paragraph 2 (g) are matter of records and hence the Deponent has no reply to offer.

9. That the averments made in Paragraph 2 (h) are matter of records and hence the Deponent has no reply to offer.

10. That the averments made in Paragraph 2 (i) are matter of records and hence the Deponent has no reply to offer.

11. **Paragraph 2 (j) of Observation**

a. ROC, Guwahati Report Observed that the Transferee Company has not filed E-Form ADT-1 for appointment of new auditor in compliance u/s 139(1) of the Companies Act, 2013 read with Rule 4 of the Companies (Audit and Auditor) Rules, 2014 after the sudden demise of the previous Statutory Auditor.

b. **REPLY BY THE PETITIONERS**

The Deponent duly authorised hereby submits that the Petitioner Transferee Company have since filed e form ADT-1 in respect of appointment of Auditor.

Copy of the challan evidencing filing e form ADT 1 is annexed marked as *ANNEXURE-B*.

12. **Paragraph 2 (k) of Observation**

No Objection Certificate (NOC) from RBI is not attached with the petition. Transferee Company being a Non-Banking Finance Company (NBFC) duly registered with Reserve Bank of India (RBI) and engaging in investing and finance activities, Transferee Company may be directed to submit the NOC from RBI with the Hon'ble NCLT.

REPLY BY THE PETITIONERS

The Deponent duly authorised hereby submits that the Petitioner Transferee Company which is a NBFC Company and will continue to be a NBFC Company even after sanction of the Scheme by the Hon'ble Tribunal. It had made applications, served notices pursuant to the

directions of the Hon'ble Tribunal, responded to the mails received from RBI.

Copy of acknowledgements are all collectively annexed marked as *ANNEXURE-C.*

13. That the averments made in Paragraph 2 (l) are matter of records and hence the Deponent has no reply to offer.

14. That the averments made in Paragraph 2 (m) are matter of records and hence the Deponent has no reply to offer.

15. **Paragraph 2 (n) of Observation**

The appointed date of the Scheme is the 1st day of April 2022 or such other date as the National Company Law Tribunal may direct whereas in terms of the Circular no. 09/2019 dated 21.08.2019 of the Ministry of Corporate Affairs, "where the 'appointed date' is chosen as a specific calendar date, it may precede the date of filing of the application for scheme of merger/amalgamation in NCLT. However, if the appointed date is significantly ante dated beyond a year from the date of filing, the justification for the same would have to be specifically brought out in the scheme and it should not be against public interest". If the application for the scheme was filed with Hon'ble Tribunal after more than one year from the appointed date, the Applicants may be directed to bring out the justification for the appointed date being more than one year before date of filing of the application for the scheme, in the scheme according to the Circular.

REPLY BY THE PETITIONERS

The Deponent duly authorised hereby submits that the Petitioner Companies have passed Board Resolution on 22nd November, 2024 for shifting of appointed date from 1st April, 2022 to 1st April, 2023.

Copy of the resolution passed by the Board of Directors of the petitioner companies are collectively annexed marked as *ANNEXURE – D.*

16. **Paragraph 2 (o) of Observation**

That the Transferee Company should undertake to comply with the provisions of section 232(3)(i) of the Companies Act, 2013 through appropriate affirmation in respect of fees payable by Transferee Company for increase of share capital on account of merger of transfer of companies.

REPLY BY THE PETITIONERS

The Deponent duly authorised hereby confirms that the Transferee Company undertakes that it shall comply with the provisions of Sec 232(3) (i) of the Companies Act, 2013 in regard to adjustment of fees upon clubbing of Authorized Share Capital of the Transferor Company with the Authorized Share Capital of the Transferee Company in post-amalgamation and shall file a detailed statement thereof with the Registrar of Companies at the time of filing of INC – 28.

17. **Paragraph 2 (p) of Observation**

The Hon'ble Tribunal may kindly direct the Petitioner Companies to file an affidavit to the extent that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy, or no change is made.

REPLY BY THE PETITIONERS

The Deponent duly authorised by the Petitioner Companies hereby affirms that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy or no change is made.

18. **Paragraph 2 (q) of Observation**

The Petitioner Companies under provisions of section 230(5) of the Companies Act, 2013 have to serve notices to concerned authorities which are likely to be affected by the Amalgamation or arrangement. Further, the

approval of the scheme by the Hon'ble Tribunal may not deter such authorities to deal with any of the issues arising after giving effect to the scheme. The decision of such authorities shall be binding on the petitioner companies concerned.

REPLY BY THE PETITIONERS

The Deponent duly authorised by the Petitioner Companies hereby confirms that the Petitioner Companies have served notices upon the regulatory authorities pursuant to the direction contained in the order passed by the Hon'ble Tribunal in their order in dispensation stage and direction stage and have filed.

Further, the Deponent hereby admits that the approval of the scheme by the Hon'ble Tribunal will not deter such authorities to deal with any of the issues arising after giving effect to the scheme. The decision of such authorities shall be binding on the petitioner companies concerned.

19. That the averments made in Paragraph 2 (r) are matter of records and hence the Deponent has no reply to offer.

10. The Ld. Authorised Representative for the Petitioner further submits that vide affidavit affirmed on 25-02-2025 which is filed on 04-03-2025, the Petitioners have annexed the email dated 19-02-2025 received by them from Reserve Bank of India (RBI) wherein at **Paragraph 2** and **Paragraph 3,** they have stated as below and the reply by the Petitioners for the same hereunder:

PARAGRAPH 2 & 3

In this connection, it is advised that the said application is returned and treated as closed since appointed date of merger is April 1, 2022 and date of valuation is March 31, 2022.

PARAGRAPH 3

Therefore, you are advised to apply afresh for prior approval for the proposed scheme of amalgamation with current appointed date of merger along with current date of valuation.

REPLY BY THE PETITIONERS

Kindly refer to your email dated 19.02.2025 addressed to the Company citing ("1. In this connection, it is advised that the said application is returned and treated as closed since appointed date of merger is April 1, 2022 and date of valuation is March 31, 2022. 2. Therefore, you are advised to apply afresh for prior approval for the proposed scheme of amalgamation with current appointed date of merger along with current date of valuation.") and to treat the application submitted by us as closed and returned. In this regard we are to say as below:

1. Firstly, the appointed date is 01.04.2022 as mentioned in the Scheme and referred to in your email.
2. As regard to Valuation Report we would like to draw your attention to the first page of the valuation Report under Paragraph 1 to the last two lines "based on the valuation of equity shares of the Companies as on appointed date i.e. 01st day of April, 2022 (***hereinafter referred to the 'Valuation Date'***). The Valuation Report is signed on 17.01.2023. Since the Appointed Date is 01.04.2022, the Balance Sheet of 31.03.2022 has been considered for arriving of the Swap Ratio which is a practice universally followed and no other later date of accounts could have been considered.

Hence, you are required to reconsider our application and to grant the No Objection to the Scheme as prayed for in our application.

11. The Ld. Authorised Representative for the Petitioner further submits that vide affidavit affirmed on 13-05-2025 which is filed on 14-05-2025, the Petitioner Transferee Company

namely - CR VANIJYA PRIVATE LIMITED undertakes to discharge any Outstanding Income Tax Demand in respect of any assessment year which has not been paid till date by the said Petitioner Transferor Companies.

It is further submitted that the Petitioner Transferee Company namely - CR VANIJYA PRIVATE LIMITED undertakes and hereby confirms that subsequent to the sanction of the Scheme by the Hon'ble National Company Law Tribunal the proceedings initiated by the Income Tax Authorities for any Assessment Year in respect of the Transferor Companies namely DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED; JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED and which are continuing and not concluded the Transferee Company shall represent itself in the same manner before the said authorities as the said Transferor Company would have done till the Conclusion of the proceedings.

It is further submitted that the Deponent submits that the Petitioner Transferee Company namely - CR VANIJYA PRIVATE LIMITED undertakes and hereby confirms that subsequent to the sanction of the Scheme by the Hon'ble National Company Law Tribunal any notices received from/served by the Income Tax Authorities or any proceedings initiated by the Income Tax Authorities for any Assessment Year in respect of the Transferor Companies namely DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED; JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED, the Transferee Company shall acknowledge the said notice and will not dispute and refute the same and will represent itself in the same manner before the said authorities as the said Transferor Company would have done till the Conclusion of the proceedings.

12. Heard submissions made by the Ld. Counsel appearing for the Petitioner, submissions made by the RD, the report filed by OL, the observation of the Reserve Bank of India and the reply filed by Petitioners and the undertakings given. Upon perusing the records and

documents in the instant proceedings and considering the submissions, **WE ALLOW** the petition and make the following orders**:-**

a. ***That the Appointed Date stands shifted from 1st day of April, 2022 to 1st day of April, 2023 and accordingly the same shall be read as 1st day of April, 2023 where ever appearing in the Scheme.***

b. The Scheme of Amalgamation mentioned in this Petition being **Annexure-A** hereto be sanctioned by this Tribunal to be binding with effect from 1st day of April, 2023 on DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED with CR VANIJYA PRIVATE LIMITED and their shareholders and all concerned;

c. All the properties, rights and interest of DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED be transferred to and vested in without further act or deed in CR VANIJYA PRIVATE LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and vested in CR VANIJYA PRIVATE LIMITED for all the estate and interest of DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED but subject nevertheless to all charges, now affecting the same;

d. All the liabilities and duties of DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED be transferred without further act or deed to CR VANIJYA PRIVATE

LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and become the liabilities and duties of CR VANIJYA PRIVATE LIMITED;

e. That all the proceedings and/or suit appeals now pending, if any, by or against DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED shall be continued by or against CR VANIJYA PRIVATE LIMITED;

f. The Transferee Company do issue and allot shares to the shareholders of DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED as envisaged in the said Scheme of Amalgamation and for that, if necessary, to increase the authorized share capital;

g. The schedule of assets in respect of DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED be filed within a period of 60 days from the date of the order to be made herein;

h. The Transferor Companies namely DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED shall stand dissolved from the effective date;

i. CR VANIJYA PRIVATE LIMITED, DNB FINANCE AND INVESTMENT CONSULTANTS PRIVATE LIMITED, JYOTI HOLDINGS PRIVATE LIMITED and KARISHMA SUPPLIERS PRIVATE LIMITED shall within 30 days after the date of obtaining the Certified Copy of the order to be made herein cause certified copies of this

order to be delivered to the Registrar of Companies, West Bengal for registration respectively;

j. Any person interested be at liberty to apply to this Tribunal in the above matter for any direction that may be necessary;

13. The Petitioner(s) shall supply legible print out of the scheme and schedule of assets and liabilities in acceptable form to the concerned departments and the departments will append such printout, upon verification to the certified copy of the order.

14. In light of the above given facts and circumstances of the present company scheme petition, we perused the salient features, rationale and objects of the proposed scheme, which has been annexed and form part of the present company petition. We duly considered the same in the light of well settled legal position that the Tribunal may examine the reasonableness of the Scheme which should be fair and equitable. The approval of a Scheme by its statutory majority itself is a strong evidence of its reasonableness and if such scheme appears to be bona fide and fair then the Tribunal will not act into its merits.

15. Upon considering the entire facts and circumstances of the present company Scheme, we find that all statutory requirements of the provisions of Sections 230-232 of the Companies Act, 2013 are satisfied. However, due compliance has to be done as per the requirement, if any, from the Reserve Bank of India (RBI) as stated in their email dated 19-02-2025. The present company Scheme appears to be genuine and bona fide and it appears to be in the interest of its shareholders and creditors. Hence, it is allowed in terms of its prayer/relief clause. Consequently, the proposed company Scheme is hereby allowed with following terms and conditions:

a. While approving the Scheme, we make it clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law.

b. The whole of the property, rights and powers of the demerged undertaking of the Demerged Company be transferred without further act or deed to the Resulting Company and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013, be transferred to and vest in the Resulting Company for all the state and interest of the Demerged Undertaking of the Demerged Company therein but subject nevertheless to all charges now affecting the same; and

c. All liabilities including taxes and charges, if any and duties of the Demerged Undertaking of the Demerged Company be transferred without further act or deed to the Resulting Company and accordingly the same shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Resulting Company without in any way obstructing compliance of depositing outstanding tax dues if any; and

d. All employees of the demerged undertaking of the Demerged Company will become employees of the Resulting Company without any break or interruption of service.

16. Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

17. The Petitioner Companies are further directed to lodge a copy of this order, the schedule of immovable assets of the Demerged Undertaking of Transferor Company as on the date of this order and the Scheme duly authenticated by the registrar of Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, on the same within 60 days from the date of the order.

18. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with

the Form INC-28 within 30 days from the date of issuance of the certified copy of the Order by the Tribunal as per relevant provisions of the Companies Act, 2013.

19. While approving the Scheme, we make it clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law.

20. The whole of the property, rights and powers of the demerged undertaking of the Demerged Company be transferred without further act or deed to the Resulting Company and accordingly the same shall pursuant to Section 232.

21. The Company Petition C.P (CAA) No. 2 / GB / 2024 connected with Company Application C.A(CAA) No. 1 / GB / 2023 is **allowed** and accordingly stands **disposed of** with the above directions and conditions.

22. The Registry is directed to send e-mail copies of the Order forthwith to all the parties and their Ld. Counsel for their information and for taking necessary steps. Certified Copy of this Order may be issued, if applied for, upon compliance of all requisite formalities.

23. File be consigned to records.

Sd/-
Yogendra Kumar Singh
Member (Technical)

Sd/-
Rammurti Kushawaha
Member (Judicial)

Signed this on 13th Day of June, 2025

Zeba (PS)